



U.S. Department
of Transportation

**Pipeline and Hazardous
Materials Safety
Administration**

December 12, 2024

1200 New Jersey Avenue, SE
Washington, DC 20590

DOT-SP 7694
(NINTH REVISION)

(FOR RENEWAL, SEE 49 CFR 107.109)

1. GRANTEE: (See individual authorization letter)
2. PURPOSE AND LIMITATION:
 - a. This special permit authorizes the transportation in commerce of certain Division 2.2 gases in non-DOT specification cylinders. This special permit provides no relief from the Hazardous Materials Regulations (HMR) other than as specifically stated herein. The most recent revision supersedes all previous revisions.
 - b. The safety analyses performed in the development of this special permit only considered the hazards and risks associated with the transportation in commerce.
 - c. Unless otherwise stated herein, this special permit consists of the special permit authorization letter issued to the grantee together with this document.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR §§ 173.302a and 175.3 in that a non-DOT specification cylinder is not authorized, except as specified herein.
5. BASIS: This special permit is based on the application of Applied Pressure Vessels, Inc. dated May 31, 2024, submitted in accordance with § 107.105 and the public proceeding thereon.

Tracking Number: 2024064024

6. HAZARDOUS MATERIALS (49 CFR § 172.101):

Hazardous Materials Description			
Proper Shipping Name	Hazard Class/ Division	Identification Number	Packing Group
Argon, compressed	2.2	UN1006	N/A
Compressed gas, n.o.s. (mixture of Helium, Argon, or Nitrogen)	2.2	UN1956	N/A
Helium, compressed	2.2	UN1046	N/A
Nitrogen, compressed	2.2	UN1066	N/A
Oxygen, compressed	2.2	UN1072	N/A

7. SAFETY CONTROL MEASURES:

a. PACKAGING: Prescribed packaging is a welded or seamless, non-refillable, non-DOT specification steel cylinder (including spheres and toroids) made in compliance with DOT Specification 39 (§§ 178.35 and 178.65) except as follows:

§ 178.65(a) *Type, size, service pressure and test pressure*

Maximum size may not exceed 15 cu.in. and marked service pressure may not exceed 85 % of the test pressure. Maximum service pressure may not exceed 6,500 psig.

§ 178.65(b) *Material: steel*

The steel analysis must conform to that shown in § 178.44(b) required for Specification 3HT cylinder.

§ 178.65(d) *Wall thickness*

The minimum wall thickness must be such that the wall stress at test pressure does not exceed either of the following:

- (1) The yield strength of the material of the finished cylinder wall.

(2) 110,000 psi.

§ 178.65(f) *Pressure tests*

(1) * * *

(2) * * *

(i) A failure occurs at a gage pressure less than 2.36 times the service pressure.

* * * * *

§ 178.65(g) *Flattening test*

(1) and (2) * * *

(3) [Add] Flattening between flat plates is authorized.

(4) Cylinders or test rings may not crack when flattened so their outer surfaces are not more than ten times wall thickness apart.

(5) * * *

§ 178.65(i) *Marking*

Applies except that cylinders must be marked "DOT-SP 7694" instead of "DOT-39".

b. TESTING: Package must be capable of withstanding a twelve-foot drop onto solid concrete without damage to the pressure vessel or leakage of gas.

c. OPERATIONAL CONTROLS: Cylinders must be shipped in strong outside packagings in accordance with § 173.301(a)(9). Cylinders that are filled with compressed oxygen and transported by aircraft must meet the requirements in § 173.302(f).

8. SPECIAL PROVISIONS:

a. A person who is not a holder of this special permit, but receives a package covered by this special permit, may reoffer it for transportation provided no modifications or changes are made to the package and it is offered for transportation in conformance with this special permit and the HMR.

- b. A current copy of this special permit must be maintained at each facility where the package is offered or reoffered for transportation.
 - c. Packages specified herein marked "DOT SP 6672" prior to the issuance of this special permit may be transported under the terms of this special permit.
9. MODES OF TRANSPORTATION AUTHORIZED: Motor vehicle, rail freight, cargo aircraft only.
10. MODAL REQUIREMENTS: A current copy of this special permit must be carried aboard each cargo vessel, aircraft, or motor vehicle used to transport packages covered by this special permit. The shipper must furnish a copy of this special permit to the air carrier before or at the time the shipment is tendered.
11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this special permit and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq:
- o All terms and conditions prescribed in this special permit and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
 - o Persons operating under the terms of this special permit must comply with the security plan requirement in Subpart I of Part 172 of the HMR, when applicable.
 - o Registration required by § 107.601 et seq., when applicable.
- Each "Hazmat employee", as defined in § 171.8, who performs a function subject to this special permit must receive training on the requirements and conditions of this special permit in addition to the training required by §§ 172.700 through 172.704.
- No person may use or apply this special permit, including display of its number, when this special permit has expired or is otherwise no longer in effect.
- Under Title VII of the Safe, Accountable, Flexible, Efficient Transportation Equity Act: A Legacy for Users (SAFETEA-LU)—“The Hazardous Materials Safety and Security Reauthorization Act of 2005” (Pub. L. 109-59), 119 Stat. 1144 (August 10, 2005), amended the Federal hazardous materials transportation law by changing the term “exemption” to “special permit” and authorizes a special permit to be granted up to two years for new special permits and up to four years for renewals.
12. REPORTING REQUIREMENTS: Shipments or operations conducted under this special permit are subject to the Hazardous Materials Incident Reporting requirements specified in 49 CFR §§ 171.15 - Immediate notice of certain hazardous materials incidents, and 171.16 - Detailed hazardous materials incident reports. In addition, the grantee(s) of this

special permit must notify the Associate Administrator for Hazardous Materials Safety, in writing, of any incident involving a package, shipment or operation conducted under terms of this special permit.

Issued in Washington, D.C.:

A handwritten signature in blue ink, appearing to read "William Schoonover", is written over a faint circular stamp.

for William Schoonover
Associate Administrator for Hazardous Materials Safety

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Pipeline and Hazardous Material Safety Administration, U.S. Department of Transportation, East Building PHH-13, 1200 New Jersey Avenue, Southeast, Washington, D.C. 20590.

Copies of this special permit may be obtained by accessing the Hazardous Materials Safety Homepage at <https://www.phmsa.dot.gov/approvals-and-permits/hazmat/special-permits-search>. Photo reproductions and legible reductions of this special permit are permitted. Any alteration of this special permit is prohibited.

PO: AC/TG